

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X Index No.:
GERALD CASALE,

Plaintiff,

Purchased Date:

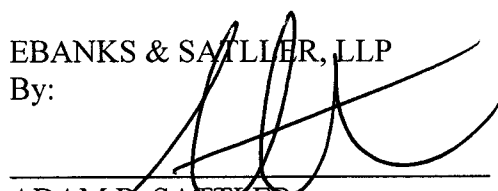
-against-

SUMMONSTHE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT, and
POLICE OFFICER ALLISON DICKSTEIN,Plaintiff designates NEW YORK
County as the place of trial.

Defendants.

The basis of venue is:
CPLR§504(3)-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, N.Y.
January 15, 2015EBANKS & SATTLER, LLP
By:
ADAM B. SATTLER
Attorneys for Plaintiff
20 Vesey Street - Suite 503
New York, N.Y. 10007
(212) 766-4411**TO:** CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street
New York, N.Y. 10007NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, N.Y. 10007POLICE OFFICER (Shield # 18358)
ALLISON DICKSTEIN
One Police Plaza
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
GERALD CASALE,

Plaintiff,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT, and
POLICE OFFICER ALLISON DICKSTEIN,

Defendants.
-----X

Index No.:

VERIFIED COMPLAINT

Plaintiff, by his attorneys, **EBANKS & SATTLER, LLP**, complaining of the
defendants, respectfully allege, upon information and belief, as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the common law and the laws of the State of New York. On December 25, 2013, plaintiff was unlawfully detained, searched, arrested, and was falsely imprisoned by the defendant, New York City Police Officer **ALLISON DICKSTEIN**. Plaintiff was deprived of his constitutional and common law rights when the individual defendant falsely arrested, and falsely imprisoned the plaintiff.

PARTIES

2. Plaintiff was and is a resident of the County, City and State of New York.
3. Defendant, **THE CITY OF NEW YORK**, is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible.
4. The defendant **THE CITY OF NEW YORK** assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
5. At all times relevant hereto defendant, **THE NEW YORK CITY POLICE**

DEPARTMENT (hereinafter NYPD) is a city agency organized under the Municipal Corporation Law of the City of New York to provide safety to the citizens of New York.

6. At all times relevant hereto defendant, **POLICE OFFICER ALLISON DICKSTEIN, Shield # 18358 (hereinafter "Officer DICKSTEIN")**, is and was, at all times relevant herein, a police officer, employee, and agent of the New York City Police Department. Officer **DICKSTEIN** is being sued in her individual capacity and official capacity.
7. At all times relevant herein, the individually named police officer defendant was acting under color of state law in the course and scope of her duty and functions as agent, servant, employee and officer of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of her lawful functions in the course of her duty. The named police officer defendant was acting for and on behalf of the New York City Police Department, at all times relevant herein, with the power and authority vested in her as a police officer, agent, servant and employee of the New York City Police Department and incidental to the lawful pursuit of his duty as a police officer, agent, servant and employee of the New York City Police Department.

NOTICE OF CLAIM

8. Plaintiff in furtherance of his stated cause(s) of action filed a timely Notice of Claim against the City of New York, within 90 days of the statutory date of accrual, in compliance with the Municipal Law Section 50-e.
9. That more than thirty (30) days have elapsed since the service of the Notice of Claim, and adjustment or payment has been neglected or refused by the City of New York.
10. This action is being commenced within the applicable statute of limitation, within one year and ninety days of the date of occurrence (the time provided by law).
11. That pursuant to GML 50-h (5) a "50-h" hearing was held on August 14, 2014.

STATEMENT OF FACTS

12. On December 25, 2013 plaintiff went to 60 West 85th Street in the County, City, and State of New York to visit his son Taylor Casale to give him a Christmas present on Christmas day.

13. On December 25, 2013 plaintiff rang the buzzer and remained in vestibule of the aforementioned premises waiting for his son. Plaintiff's son appeared and then the plaintiff and his son went outside the vestibule to the front of the aforementioned premises and began to talk and had a conversation.
14. On December 25, 2013 plaintiff was legally standing in front of the 60 West 85th Street in the County, City, and State of New York talking to his son.
15. Thereafter, defendant Officer **DICKSTEIN** appeared and approached the plaintiff and engaged the plaintiff in a conversation.
16. On December 25, 2013, at approximately 10:55 AM, in front of 60 West 85th Street in the County City and State of New York, the plaintiff **GERALD CASALE**, was without probable cause or reasonable suspicion falsely arrested by Officer **DICKSTEIN** a member of the New York City Police Department.
17. A misdemeanor charge was lodged by Officer **DICKSTEIN** against plaintiff.
18. It appears that defendant Officer **DICKSTEIN** failed to properly investigate the subject incident.
19. Defendant Officer **DICKSTEIN** failed to interview Taylor Casale and instead proceeded to draw a false complaint against plaintiff.
20. Plaintiff was then transported to the precinct where he was fingerprinted, photographed and placed into a holding cell for hours.
21. Upon information and belief, after many hours plaintiff was transported to New York County Central Booking, and was seen by a Judge, approximately thirty two hours after the arrest.
22. After multiple court appearances, nearly spanning a year, all charges were dismissed against the plaintiff on motion of the District Attorney.
23. It was later revealed in open court, on April 28, 2014, before the Honorable Steven Statsinger, Judge of the Criminal Court of the City of New York, and thru exculpatory Brady Material provided by the office of the District Attorney, New York County, that claimant, although invited into the apartment, did not go into the subject apartment.
24. The false arrest and false imprisonment of the plaintiff, by the individually named police officer defendant, caused plaintiff to sustain physical, psychological and emotional trauma.

**AND AS FOR PLAINTIFF'S FIRST CAUSE OF ACTION
FOR: FALSE ARREST AND FALSE IMPRISONMENT**

25. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "24" with the same force and effect as if more fully set forth at length herein.
26. The acts and conduct of the defendant Officer **DICKSTEIN** constitute false arrest and false imprisonment under the laws of the State of New York and under the Fourth Amendment of the United States Constitution.
27. On December 25, 2013 the plaintiff **GERALD CASALE**, was without probable cause or reasonable suspicion falsely arrested by defendant Officer **DICKSTEIN** a member of the New York City Police Department.
28. On December 25, 2013 defendant Officer **DICKSTEIN** intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
29. The defendant Officer **DICKSTEIN** was at all times an agent, servant, and employee acting within the scope of her employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.
30. The City of New York and the New York City Police Department, as the employer of the defendant Officer **DICKSTEIN**, are responsible for her wrongdoing under the doctrine of respondeat superior.
31. That by reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AND AS FOR PLAINTIFF'S SECOND
CAUSE OF ACTION FOR: MALICIOUS PROSECUTION**

32. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "31" with the same force and effect as if more fully set forth at length herein.
33. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and under the Fourth Amendment to the United States Constitution.

34. Defendants commenced and continued a criminal proceeding against plaintiff.
35. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff, and for the charge(s) for which he was prosecuted.
36. The prosecution and criminal proceedings terminated favorably to the plaintiff.
37. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.
38. Defendant Officer **DICKSTEIN** was at all times an agent, servant, and employee acting within the scope of her employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.
39. The City of New York and the New York City Police Department, as the employer of the defendant Officer **DICKSTEIN**, are responsible for her wrongdoing under the doctrine of respondeat superior.
40. That by reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AND AS FOR PLAINTIFF'S THIRD CAUSE OF ACTION
FOR NEGLIGENT HIRING, RETENTION,
TRAINING AND SUPERVISION**

41. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "40" with the same force and effect as if more fully set forth at length herein.
42. At all relevant times hereto, defendants **THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT** had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, precinct and Patrol levels, the defendant Officer **DICKSTEIN** in the protection of the rights of the plaintiff under the laws of the State of New York.
43. The City of New York and the New York City Police Department and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendant Officer **ALLISON DICKSTEIN**, an individual who was unfit for the performance of police duties on the aforementioned date, at the aforementioned location.

44. That by reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

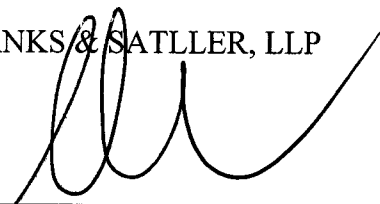
**AND AS FOR PLAINTIFF'S FOURTH CAUSE OF ACTION
FOR: NEGLIGENT INFLICTION OF EMOTION DISTRESS**

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "44" with the same force and effect as if more fully set forth at length herein.
46. By the actions described herein defendant Officer **DICKSTEIN** engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed to plaintiff by the laws and Constitution of the State of New York.
47. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.
48. The City of New York and New York City Police Department, as the employer of the police officer defendant, is responsible for his wrongdoing under the doctrine of respondeat superior.
49. That by reason of the foregoing, plaintiff has been damaged in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction.
50. That this action falls within one or more of the exceptions set forth in C.P.L.R. §1602.
51. Plaintiffs hereby demand trial by jury of all issues properly triable thereby.

WHEREFORE, plaintiff demands judgment against the defendants on each cause of action in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction together with the costs, interests and disbursement of this action, and such other relief as is appropriate under the law.

Dated: New York, N.Y.
January 15, 2015

EBANKS & SATTLER, LLP
By:

A handwritten signature in black ink, appearing to read 'AS', is written over a horizontal line.

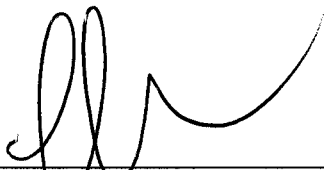
ADAM B. SATTLER
Attorneys for Plaintiff
GERALD CASALE
20 Vesey Street - Suite 503
New York, New York 10007
(212) 766-4411

ATTORNEY'S VERIFICATION

ADAM B. SATTLER, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of the law firm of **EBANKS & SATTLER, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is that Plaintiffs are not presently in the county wherein I maintain my office.

Dated: New York, N.Y.
January 15, 2015



ADAM B. SATTLER

Index No.: _____

Year: _____

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

GERALD CASALE,

Plaintiffs,

-against-

THE CITY OF NEW YORK,
NEW YORK CITY POLICE DEPARTMENT, and
Police Officer ALLISON DICKSTEIN,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

EBANKS & SATTLER, LLP

Attorneys for Plaintiff
20 Vesey Street - Suite 503
New York, N.Y. 10007
(212) 766-4411

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: _____

Signed: _____

Service of a copy of the within is hereby admitted.

Dated: _____

Attorney(s) for
